



EB-1A Extraordinary Ability

Strategic Profile Assessment & Roadmap to Approval

Prepared for: **Neelima Velagapudi** | April 2026



2

Strong Criteria



3

Partial Criteria



11+

Years Experience



~67%

FY25 Approval Rate

★ SECTION 1 — WHAT IS EB-1A?

What it is

The EB-1A (Extraordinary Ability) is the fastest employment-based path to a US Green Card. It requires NO employer sponsor and NO labor certification. You self-petition.

For Indian nationals, EB-1A has NO backlog — priority dates are current.

How to qualify

- ✓ Meet at least 3 of 10 USCIS criteria (evidence-based)
- ✓ Pass the two-step Kazarian evaluation
- ✓ Demonstrate sustained national or international acclaim
- ✓ Show you are among the top few in your field

■ SECTION 2 — 10 CRITERIA ASSESSMENT

Each criterion is assessed against Neelima's documented profile. You must satisfy at least 3 to file; 4–5 well-documented criteria significantly increase approval odds.

▶ SECTION 3 — STEP-BY-STEP ROADMAP TO EB-1A FILING

Phase 1 — Audit & Document *Months 1–2 | Start immediately*

- ✓ Check IEEE paper citations on Google Scholar, Scopus, and Web of Science
- ✓ Gather pay stubs + collect IEEE/BLS salary benchmarks for embedded automotive engineers
- ✓ Request formal leadership letters from Intel manager and Stellantis manager
- ✓ Pull USPTO patent records and any downstream patent citations
- ✓ Compile evidence binder: patent, publication, automation metrics, vehicle program data

Phase 2 — Build Judging & Membership *Months 1–3 | Begin in parallel*

- ✓ Apply for IEEE Senior Member status (requires 3 Senior/Fellow references — find them now)
- ✓ Contact IEEE Transactions on Vehicular Technology to volunteer as peer reviewer
- ✓ Contact SAE International journals and Embedded World conference for reviewer roles
- ✓ Document all review invitations and completions with dated emails

Phase 3 — Second Publication *Months 3–8 | Concurrent with Phase 2*

- ✓ Select a topic: AUTOSAR BSW diagnostics, EV powertrain cybersecurity, or C-V2X embedded systems
- ✓ Submit to IEEE Embedded Systems Letters, SAE Int'l Journal, or Automotive Engineering
- ✓ A 2025–2026 publication demonstrates sustained contribution, not just a 2014 one-time event
- ✓ Co-authorship with a recognized academic adds credibility

Phase 4 — Independent Expert Letters *Months 4–9 | Critical for Final Merits*

- ✓ Identify 4–6 independent experts (NOT your employer or direct colleagues)
- ✓ Target: embedded systems professors, AUTOSAR consortium members, engineers at OEM competitors
- ✓ Letters must detail specific impact with measurable data — not generic praise
- ✓ Letters are the single biggest factor in Final Merits Determination — invest here heavily

Phase 5 — Award Nominations *Months 6–12 | Build recognition record*

- ✓ Research and apply for IEEE Region 4, SAE awards, Women in Engineering recognition
- ✓ Have manager submit nomination for Automotive Testing Technology International award
- ✓ Compile any media coverage, trade publication mentions, or external recognition
- ✓ Even nomination shortlisting with supporting documentation has evidentiary value

Phase 6 — File I-140 Petition *Months 9–14 | File when 4–5 criteria are solid*

- ✓ Engage an experienced EB-1A immigration attorney (not a general immigration firm)
- ✓ Budget \$10,000–\$25,000 attorney fees; \$2,805 for USCIS premium processing (15-business-day decision)
- ✓ Consider parallel EB-2 NIW filing as a backstop strategy — same self-petition advantage
- ✓ For Indian nationals: EB-1A has NO backlog — Green Card filing can proceed immediately on I-140 approval

● SECTION 4 — PROFILE RARITY & COMPETITIVE LANDSCAPE

8K–15K

AUTOSAR BSW engineers
in the US

4K–8K

With patent + IEEE
publication (much rarer)

200–600

Estimated EB-1A active
filers in this niche

Competitive advantage

USCIS sees far fewer automotive
embedded profiles vs. AI/ML
engineers. Your niche
specialization is a genuine asset
for standing out.



SECTION 5 — RISKS & MITIGATION STRATEGY

High Risk: Final Merits Failure

Meeting 3 criteria is only step one. USCIS performs a holistic review and can deny even with 3 criteria met if the overall narrative doesn't show you at the top of your field.

Mitigation: Build 4–5 criteria. Frame Intel → Stellantis → patent as a multi-year trajectory of sustained impact. Every document should reinforce the same central narrative.

High Risk: Weak Independent Letters

Letters from your manager or direct colleagues carry little weight. USCIS prioritizes letters from independent experts who know your reputation through your work, not your employment.

Mitigation: Identify 4–6 independent experts via conferences, IEEE networks, and patent citations. Start building these relationships NOW.

Medium Risk: 'Industry Engineer' Framing

USCIS frequently denies 'lead engineer at large company' profiles that read as good employees rather than field-defining innovators.

Mitigation: Frame every achievement by its external impact. The 80% automation reduction, 83% throughput improvement, and patent are YOUR differentiators — lead with them.

Strategic Option: EB-2 NIW Parallel Track

EB-2 NIW (National Interest Waiver) has a lower evidentiary bar and also allows self-petitioning with no employer sponsor. Many profiles like Neelima's qualify now.

Recommendation: File EB-1A as primary and EB-2 NIW as a parallel backstop. Both are self-petitioned. This significantly de-risks the overall immigration strategy.

▲ SECTION 6 — EB-1A APPROVAL CONFIDENCE ANALYSIS

A side-by-side comparison of estimated approval confidence for Neelima's current as-is profile versus the strengthened profile after completing the [pinnacle]³ guidance roadmap. Estimates are grounded in USCIS adjudication data, RFE trends, and case law patterns.

CURRENT AS-IS PROFILE <i>Filing today, without additional preparation</i>	POST-GUIDANCE PROFILE <i>After completing [pinnacle]³ roadmap (9–14 months)</i>
25–35% Estimated Approval Confidence HIGH RISK OF DENIAL OR RFE	75–85% Estimated Approval Confidence STRONG APPROVAL LIKELIHOOD
Criteria met (strong)2 of 10 Criteria partial / buildable3 of 10 Independent expert letters0 confirmed Judging credentialsNone Selective membershipNot established Publication recordUnknown / 2014 only Industry awards (national)None qualifying RFE likelihoodVery High (70–80%)	Criteria met (strong)4–5 of 10 Criteria partial / buildable1–2 supporting Independent expert letters4–6 confirmed Judging credentialsIEEE / SAE reviewer Selective membershipIEEE Senior Member Publication record2 papers + citations Industry awards (national)1+ nomination/award RFE likelihoodLow–Moderate (20–35%)

+40–50 percentage points uplift in approval confidence

The [pinnacle]³ roadmap systematically closes the gap between a risky filing and a compelling, well-documented petition — in 9–14 months.

What drives the confidence gap — factor by factor

Factor	As-Is	Post-Guidance	Impact
Strong criteria count	2 (patent + IEEE pub)	4–5 (+ salary, leadership, judging, membership)	Critical
Independent expert letters	0 confirmed	4–6 from field-independent experts	Critical
Judging / peer review	None established	IEEE/SAE reviewer with documented evidence	High

Selective membership	Standard IEEE only	IEEE Senior Member (peer-nominated)	High
Second publication	Single 2014 paper	Second 2025-26 paper + citation history	High
National award / recognition	Internal only	1+ external nomination or shortlist	Medium
Salary context documentation	Not documented	BLS + IEEE survey benchmarking letter	Medium
Narrative coherence	Fragmented career list	Unified story: innovator → leader → field impact	High
RFE readiness	Low — gaps likely	High — pre-emptively addressed	Critical

How these confidence estimates are derived

These estimates combine: (1) USCIS FY2025 EB-1A approval rate data (66.9% overall, 53.4% in Q4 2025 during tightened adjudication); (2) observed RFE rates of 40–50% for industry-engineer profiles; (3) Kazarian two-step framework requirements where Final Merits Determination is an independent failure point even after meeting 3 criteria; (4) the documented evidentiary gap between Neelima's current profile and USCIS precedent decisions for engineering profiles. The as-is 25–35% estimate reflects the combined probability of meeting threshold criteria AND passing Final Merits with thin independent evidence. The post-guidance 75–85% reflects a well-documented petition at 4–5 criteria with independent letters, judging credentials, and a coherent narrative — consistent with approval rates seen for thoroughly prepared engineering profiles.

Important Disclaimer

This document is prepared for informational and strategic planning purposes only and does not constitute legal advice. Immigration law is complex and highly fact-specific. The criteria assessments, timelines, and recommendations contained herein are based on publicly available USCIS guidelines and general immigration strategy principles. Individual outcomes vary significantly. You should consult a qualified EB-1A immigration attorney before taking any action or filing any petition.